

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF NEW JERSEY

IN RE PAULSBORO DERAILMENT CASES This Filing Relates To The Following Actions:	No. 13-cv-784 RBK-KMW
DONALD WILSON, MISHON WILSON, ALVERA BLANDING ROBINSON and JUAN SEREY, on behalf of themselves and all others similarly situated, Plaintiffs, vs. CONSOLIDATED RAIL CORPORATION, NORFOLK SOUTHERN RAILWAY COMPANY a/k/a NORFOLK SOUTHERN CORPORATION, and CSX TRANSPORTATION, INC. Defendants.	No.12-cv-07586-RBK-KMW
OWEN HAYNES, on behalf of himself and all others similarly situated, Plaintiff, vs. CONSOLIDATED RAIL CORPORATION, NORFOLK SOUTHERN RAILWAY COMPANY a/k/a NORFOLK SOUTHERN CORPORATION, and CSX TRANSPORTATION, INC. Defendants.	No. 13-cv-410-RBK-KMW
JOHN STEPHENSON and TRACY LEE, in their own right and on behalf of all others similarly situated, Plaintiff, vs. CONSOLIDATED RAIL CORPORATION, NORFOLK SOUTHERN RAILWAY COMPANY a/k/a NORFOLK SOUTHERN CORPORATION, and CSX TRANSPORTATION, INC.	No. 13-cv-721-RBK-KMW

Defendants	
DON WILSON, d/b/a/ DON'S BARBERSHOP,	No. 13-cv-761 RBK/KMW
Plaintiff,	
vs.	
CONSOLIDATED RAIL CORPORATION, NORFOLK SOUTHERN RAILWAY COMPANY a/k/a NORFOLK SOUTHERN CORPORATION, and CSX TRANSPORTATION, INC	
Defendants.	

CONSOLIDATED CLASS ACTION AMENDED COMPLAINT

INTRODUCTION

1. This is a Class Action Complaint seeking redress for residents in Paulsboro, New Jersey, in connection with a November 30, 2012 train derailment that resulted in exposure to massive amounts of toxic chemicals, a mandatory evacuation, and an order to "shelter in place." The town of Paulsboro is home to more than 6,000 residents, many of whom were advised to evacuate and/or stay inside with windows closed shortly after the wreck.

2. This action is brought by plaintiffs Donald Wilson, individually and doing business as Don's Barber Shop and Tracy Lee pursuant to Federal Rule of Civil Procedure 23. Plaintiffs, on behalf of themselves and all other similarly situated, seek a Class defined as follows:

A. ECONOMIC LOSS SUB-CLASS REGARDING EVACUATON

Reside in the County of Gloucester, New Jersey who evacuated their place of residence in the County of Gloucester, as a result of the train derailment and chemical leak in Paulsboro, New Jersey on November 30, 2012 and as a result had unreimbursed non-medical expenses.

B. ECONOMIC LOSS SUB-CLASS REGARDING INCOME LOSS

All persons residing in the County of Gloucester, New Jersey, who had income loss, and all business entities physically located in the County of Gloucester, New Jersey (and which were, if incorporated, incorporated in the State of New Jersey) which had income loss as a result of the train derailment and chemical leak in Paulsboro, New Jersey on November 30, 2012.

PARTIES

3. Plaintiff Donald Wilson is a citizen and resident of the State of New Jersey, residing at 27 E. Jefferson Street, Paulsboro, Gloucester County, NJ, 08066, who was forced to evacuate his home following the derailment. Donald Wilson also owns a business in Paulsboro as a sole proprietorship, doing business as Don's Barbershop. Don's Barbershop is located at 764 North Delaware St., Paulsboro, New Jersey. Don's Barbershop was forced to close and was otherwise adversely affected by the spill of toxic chemicals following the train derailment.

4. Plaintiff, John Stephenson, is and at all times relevant hereto was an individual and a resident of 213 B Cedarbrook Road, Sicklerville, New Jersey, 08081.

5. Plaintiff Tracy Lee is, and at all times relevant hereto, was an individual and a resident of 911 N. Delaware Street, Paulsboro, New Jersey, 08066.

6. Plaintiffs Donald Wilson, Individually and doing business as Don's Barbershop, John Stephenson and Tracy Lee are collectively referred to herein as "Plaintiffs."

7. Defendant, Consolidated Rail Corporation ("Conrail"), is a corporation duly organized and existing under and by virtue of the laws of the Commonwealth of Pennsylvania with its principal place of business and/or corporate headquarters located at 1717 Arch Street, 32nd Floor, Philadelphia, PA. 19103.

8. Defendant, Norfolk Southern Railway Company, a/k/a Norfolk Southern Corporation ("Norfolk") is a corporation duly organized and existing under and by virtue of the

laws of the State of Virginia with its principal place of business located at Three Commercial Place, Norfolk, VA 23510.

9. Defendant, CSX Transportation, Inc. ("CSX") is a corporation duly organized and existing under and by virtue of the laws of a state other than New Jersey with its principal place of business and/or corporate headquarters located in Jacksonville, Florida and an office for the service of legal process at 2704 Commerce Drive, Ste. B, Harrisburg, PA 17110.

10. Defendants Conrail, Norfolk and CSX are collectively referred to herein as the "Defendants."

11. At all times material hereto, none of the Defendants were a citizen of, nor did they have a principal place of business in, the State of New Jersey.

JURISDICTION AND VENUE

12. This Court has subject matter jurisdiction over this action pursuant to 28 U.S.C. §1332 in that none of the plaintiffs are from the same state as any of the defendants and the amount in controversy exceeds \$75,000.

13. Venue is proper because the events giving rise to the claims occurred in this district.

SUBSTANTIVE ALLEGATIONS

14. On the morning of November 30, 2012, and for some time prior thereto, the Defendants, jointly and severally, owned, managed, controlled, operated, and maintained the bridge known as the Paulsboro Bridge, which spanned the Mantua Creek, in Paulsboro, Gloucester County, New Jersey, and the train which was involved in the derailment on that date.

15. The Paulsboro Bridge was built in approximately the year 1873.

16. The Paulsboro Bridge is a “swing bridge” and can be positioned to permit water travel to proceed along the Mantua Creek or positioned to permit rail traffic to proceed over the Mantua Creek.

17. During the year prior to November 30, 2012, the Defendants, jointly and severally, individually and/or through their respective agents, servants, workmen and/or employees, received at least 23 “trouble tickets” reporting that the Paulsboro Bridge had malfunctioned.

18. Since October 27, 2012, approximately one month prior to this accident, the Defendants, jointly and severally, individually and/or by their respective agents, servants, workmen and/or employees, received at least 9 “trouble tickets” reporting the improper operation of the subject bridge and/or malfunctioning of the subject bridge.

19. On November 19, 2012, ten days before the subject accident, a rail crew reported to the Defendants that the subject bridge had malfunctioned in that the track on the bridge failed to properly connect and lock with the track on either side of the bridge.

20. Approximately eight hours before the subject accident, another train crew reported to the Defendants that the subject bridge had malfunctioned and failed to operate properly.

21. Federal and state laws and regulations required that the subject bridge be inspected every three months.

22. An inspection of the subject bridge should have been performed in September, 2012. However, the Defendants, jointly and severally, individually and/or by their respective agents, servants, workmen and/or employees, failed to perform the mandated inspection of the bridge in September, 2012 and/or failed to properly perform said inspection.

23. Prior to this accident, the Defendants had employed a human operator whose job was to move the bridge into the proper position, lock the bridge to the tracks on either side of it, and inspect to make certain that the bridge was properly aligned and locked with the adjacent rails before any trains were permitted to move over the bridge.

24. In an attempt to save money, also prior to the accident, the Defendants, jointly and severally, individually and/or through their respective agents, servants, workmen and/or employees, eliminated the human bridge operator position and replaced the human bridge operator with an electronic/mechanical system.

25. On the morning of November 30, 2012, one of the Defendants' train crews proceeded to remotely move the Paulsboro Bridge into its position to enable their train to travel over the Mantua Creek and further proceeded to remotely lock the tracks on the bridge to the tracks on either side of the bridge.

26. The bridge and its signal system were designed to present a green signal when in its proper position and when the track was properly locked. The bridge was also designed to present a red signal when the bridge was not properly positioned, or the track on the bridge was not properly locked to the track on either side of the bridge. Even though the train crew had used the remote control to properly align and lock the bridge, *the signal remained red*.

27. Defendants' train crew contacted Defendants' dispatcher and requested permission to cross the bridge *despite the presence of a red signal*.

28. On the morning of November 30, 2012, *despite the presence of a red signal*, the Defendants' dispatcher authorized the same crew to travel across the Paulsboro Bridge.

29. As the train was traveling across the Paulsboro Bridge, the train derailed and four tank cars fell off of the bridge into the Mantua Creek below.

30. At or about the same time, the Paulsboro Bridge began to collapse.

31. At least one of the tank cars that derailed was carrying 25,000 gallons of vinyl chloride and/or other toxic and dangerous substances and the vinyl chloride was released from the train car into both the water and the atmosphere, sending seventy people to the hospital for emergency care.

32. The entire neighborhood became engulfed in a toxic cloud of vinyl chloride fumes. Nearby residents described this fog as so thick that "you couldn't see the person next to you."

33. Acute exposure to vinyl chloride adversely affect the central nervous system causing dizziness, drowsiness, headaches, loss of consciousness, lung and kidney irritation and inhibition of blood clotting.

34. Vinyl chloride is a highly flammable chemical used to manufacture PVC pipes and bottles. Exposure to vinyl chloride can cause a burning sensation in the eyes or respiratory discomfort.

35. According to the U.S. Environmental Protection Agency (EPA) short term exposure to high levels of vinyl chloride through inhalation can cause dizziness, drowsiness and headaches. Prolonged exposure can result in liver damage, and in some cases has been shown to increase a person's risk of a rare form of liver cancer.

36. The bridge in history had a significant history of failure. A similar derailment occurred in the same place on August 23, 2009. The cause of that derailment was listed as "bridge misalignment or failure" on Conrail's accident report to the Federal Railroad Administration, but no cause for the bridge failure was reported.

37. State Senate president Stephen Sweeney (D., Gloucester), who represents Paulsboro, said following the November 2012 derailment "we have a lot of questions to be answered" about the adequacy of the 2009 repair. "Was it a temporary repair? Was it done properly? Were they going to come back and do more later?" said Sweeney, who is an ironworker by trade and has worked on bridge construction.

38. Sweeney said that the Paulsboro bridge had apparently been "making noises" shortly before its collapse November 30, 2012 and that "Conrail was coming out and looking at it." Nearby homeowner Gary Stevenson said Conrail workers had been looking at the bridge for the past three weeks prior to the derailment, but that trains had continued to operate over the span. "Conrail people were here every day for the last three weeks. When the trains would go over the bridge," Stevenson said, "there would be 'bah-bum, bah-bum, bah-bum' sound. When they rebuilt it three years ago, you couldn't hear it. But then it started again."

39. The accident was caused by the joint and several negligence of the Defendants, individually and/or through their respective agents, servants, workmen and/or employees, including but not limited to the following:

- a. Failure to properly inspect the subject bridge;
- b. Failure to properly discover the defective, malfunctioning and unsafe condition of the subject bridge;
- c. Failing to repair the subject bridge;
- d. Failing to properly maintain the subject bridge;
- e. Failing to heed prior complaints that the subject bridge failed to operate properly, failed to properly align and failed to properly lock;
- f. Failing to heed the complaints of other crews both ten days before this accident and hours before this accident concerning the failure of the subject bridge to properly operate, properly align and properly lock;

- g. Permitting a train to operate over the subject bridge even though there was a red signal that indicated that the bridge was not properly aligned and/or was not properly locked;
- h. Failure to have properly trained personnel to detect the condition of the bridge, and whether the bridge was properly aligned and locked, prior to permitting the train to operate over it despite a red signal;
- i. Failure to have a human bridge operator who was trained to operate the bridge and to inspect it prior to any train travel over it;
- j. Failing to perform the mandated quarterly inspection on the subject bridge;
- k. Permitting hazardous, toxic, and extremely dangerous and poisonous substances to be transported across the bridge despite the presence of a red signal indicating that the bridge was not properly aligned and/or locked;
- l. Failing to take necessary and proper precautions for the safety of those individuals living, working, and otherwise situated in the vicinity of the subject bridge;
- m. Failing to warn those individuals living, working, and otherwise situated near the subject bridge that a hazardous substance was being transported across the bridge despite the facts of the defendants, jointly and severally, knew or should have known that it was unsafe to operate a train across the bridge under the circumstances existing on the morning of November 30, 2012;
- n. Violating statutes of the United States of America and the State of New Jersey, and regulations of federal and state departments and agencies with respect to the subject bridge and the movement of train traffic across it;
- o. Failure to take necessary precautions despite engaging in an ultra-hazardous activity;
- p. Failure to properly inspect, maintain and repair the signal system associated with the subject bridge;
- q. Failure to comply with the defendants' own safety, operating and other rules, procedures and regulations;
- r. Failure to comply with NORAC Rules;
- s. Failure to have a qualified bridge mechanic or engineer, signal maintainer or signal department personnel, or maintenance of way personnel inspect

the bridge and the tracks before permitting the train to travel over the bridge despite the red signal;

- t. Permitting untrained and unqualified personnel to make the decision to proceed over the bridge despite the presence of the red signal; and
- u. Other acts and omissions to be ascertained in discovery.

40. As a result of the negligence, carelessness, and recklessness of the Defendants, individually and through their respective agents, servants, workmen and/or employees, Plaintiffs and class members were forced to evacuate their homes and/or shelter in place.

41. A mandatory evacuation was imposed on residents living in a twelve block area near the accident. The evacuation zone starts at Railroad Avenue and goes south to East Broad Street/Crown Point Road and from North Delaware Street heading east to Mantua Creek.

42. The evacuation order, which began on November 30, 2012 was subsequently expanded on December 4, 2012, to encompass an additional 100 homes. In total, the evacuation lasted in excess of a week (and remains ongoing for certain homes closest to the accident), and affected at least 600 residents of 200 homes in the 2.2-square-mile borough.

43. Moreover, additional Paulsboro residents outside the actual evacuation zone were ordered to remain in their homes, and to seal all windows and doors during the length of the clean-up.

CLASS ACTION ALLEGATIONS

44. Plaintiffs bring this action pursuant to Federal Rule of Civil Procedure 23. Plaintiffs, on behalf of themselves and all other similarly situated, seek a Class defined as follows:

A. ECONOMIC LOSS SUB-CLASS REGARDING EVACUATON

Reside in the County of Gloucester, New Jersey who evacuated their place of residence in the County of Gloucester, as a result of the train

derailment and chemical leak in Paulsboro, New Jersey on November 30, 2012 and as a result had unreimbursed non-medical expenses.

B. ECONOMIC LOSS SUB-CLASS REGARDING INCOME LOSS

All persons residing in the County of Gloucester, New Jersey, who had income loss, and all business entities physically located in the County of Gloucester, New Jersey (and which were, if incorporated, incorporated in the State of New Jersey) which had income loss as a result of the train derailment and chemical leak in Paulsboro, New Jersey on November 30, 2012.

45. Plaintiffs are members of the Class and have suffered economic losses but do not herein claim injury arising out of the Defendants' tortious conduct.

46. The Class excludes Defendants and any entity in which Defendants have a controlling interest, and their officers, directors, legal representatives, successors and assigns.

47. The Class is so numerous that joinder of all members is impracticable.

48. A class action is superior to all other available methods for the fair and efficient adjudication of Plaintiffs' claims.

49. Plaintiffs' claims are typical of the claims of the Class in that the named representatives and the members of the Class (a) evacuated residences and had unreimbursed non-medical expenses and/or (b) had income loss as a result of the train derailment and chemical leak.

50. There are questions of law and fact common to the Class, including but not limited to:

- a) Whether Defendants' negligence caused the accident resulting in the derailment, subsequent leak of toxic chemicals, and evacuation and/or "shelter in place" orders;
- b) Whether Defendants failed to properly inspect the subject bridge;
- c) Whether Plaintiffs and class members have suffered damages for being evacuated from their homes;
- d) Whether Plaintiffs and class members have suffered damages for being ordered to stay in their homes;

- e) Whether Defendants are liable to Plaintiffs and class members pursuant to the doctrine of *res ipsa loquitor*; and
- f) Whether Defendants are liable to Plaintiffs and class members for punitive damages resulting from the derailment and vinyl chloride spill.
- g) Whether Defendants failed to properly discover the defective, malfunctioning and unsafe condition of the subject bridge;
- h) Whether Defendants failed to repair the subject bridge;
- i) Whether Defendants failed to properly maintain the subject bridge;
- j) Whether Defendants failed to heed prior complaints that the subject bridge failed to operate properly, failed to properly align and failed to properly lock;
- k) Whether Defendants failed to heed the complaints of crews both days before this accident and hours before this accident concerning the failure of the subject bridge to properly operate, properly align and properly lock;
- l) Whether Defendants permitted a train to operate over the subject bridge even though there was a red signal that indicated that the bridge was not properly aligned and/or was not properly locked;
- m) Whether Defendants failed to have properly trained personnel to detect the condition of the bridge, and whether the bridge was properly aligned and locked, prior to permitting the train to operate over it despite a red signal;
- n) Whether Defendants failed to have a human bridge operator who was trained to operate the bridge and to inspect it prior to any train travel over it;
- o) Whether Defendants failed to perform the inspection mandated by regulations on the subject bridge;
- p) Whether Defendants permitted ultrahazardous, toxic, and extremely dangerous and poisonous substances to be transported across the bridge despite the presence of a red signal indicating that the bridge was not properly aligned and/or locked;
- q) Whether Defendants failed to take necessary and proper precautions for the safety of those individuals living, working, and otherwise situated in the vicinity of the subject bridge;
- r) Whether Defendants failed to warn those individuals living, working, and otherwise situated near the subject bridge that an ultrahazardous and hazardous substance was being transported across the bridge despite the fact that the defendants, jointly and severally, knew or should have known that it was unsafe to operate a train across the bridge under the circumstances existing on the morning of November 30, 2012;

- s) Whether Defendants violated statutes of the United States of America and the State of New Jersey, and regulations of federal and state departments and agencies with respect to the subject bridge and the movement of train traffic across it;
- t) Whether Defendants failed to take necessary precautions despite engaging in an ultra- hazardous activity;
- u) Whether Defendants failed to properly inspect, maintain and repair the signal system associated with the subject bridge;
- v) Whether Defendants failed to comply with the defendants' own safety, operating and other rules, procedures and regulations;
- w) Whether Defendants failed to comply with Northeast Operating Rules Advisory Committee (NORAC) Rules;
- x) Whether Defendants failed to have a qualified bridge mechanic or engineer, signal maintainer or signal department personnel, or maintenance of way personnel inspect the bridge and the tracks before permitting the train to travel over the bridge despite the red signal;
- y) Whether Defendants permitted untrained and unqualified personnel to make the decision to proceed over the bridge despite the presence of the red signal;
- z) Whether Plaintiffs and class members are entitled to compensation by Defendants for economic loss;
- aa) Whether Plaintiffs and class members and/or business entities which had income loss are entitled to compensation by Defendants;
- bb) Whether the evacuations occurred as a result of government officials' directions and/or as a result of the train derailment and chemical leak; and
- cc) Whether punitive damages are warranted.

51. These and other questions of law and/or fact are common to the class and predominate over any questions affecting only individual class members.

52. Plaintiffs will fairly and adequately represent and protect the interests of the members of the classes. Plaintiffs have no claims antagonistic to those of the classes. Plaintiffs have retained counsel competent and experienced in complex class actions. Plaintiffs' counsel will fairly, adequately and vigorously protect the interests of the classes. The interests of the

Plaintiffs and the Class they seek to represent are aligned because they seek compensation for economic loss as a result of the train derailment and chemical leak.

53. A Class Action is superior to any other available method for the fair and efficient adjudication of this dispute because common questions of law and fact overwhelmingly predominate any questions that may affect only individual Class members, and there would be enormous economies to the courts and the parties in litigating the common issues on a Classwide instead of repetitive individual basis. A Class Action approach would serve to consolidate and create a scenario with far fewer management difficulties because it provides the benefits of unity adjudication, judicial economy, economies of scale and comprehensive supervision by a single court.

54. Class action status is warranted pursuant to Rule 23(b)(1)(A) because the prosecution of separate actions by or against individual members of the class would create a risk of inconsistent or varying adjudications with respect to individual members of the class, which would establish incompatible standards of conduct for Defendants.

55. Class action status is also warranted pursuant to Rule 23(b)(1)(B) because the prosecution of separate actions by or against individual members of the class would create a risk of adjudications with respect to individual members of the class which would, as a practical matter, be dispositive of the interests of the other members not parties to the adjudications or substantially impair or impede their ability to protect their interests.

56. Class action status is also warranted under Rule 23(b)(3) because questions of law or fact common to the members of the class predominate over any questions affecting only individual members, and a class action is superior to other available methods for the fair and efficient adjudication of this controversy.

57. Plaintiffs on behalf of themselves and the Class will seek a court-ordered Notice funded by Defendants, to protect the economic interests of Plaintiffs and the Class members.

58. Notice may be provided to Class members by such combination of print publication, broadcast publication, internet publication and/or first class mail that this Court determines best comport with modern Class notice form, content and dissemination techniques as used in other cases.

59. Plaintiffs know of no difficulty that will be encountered in the management of this litigation that would preclude its maintenance as a Class Action certified for the Class.

COUNT I
NEGLIGENCE

(On Behalf of All Plaintiffs Against All Defendants)

60. Plaintiffs, on behalf of themselves and class members, repeat, reiterate, and re-allege each and every allegation set forth above with the same force and effect as if copied herein.

61. The derailment, bridge collapse, and leak of vinyl chloride was caused by the concurrent negligence of the Defendants.

62. Upon information and belief, Plaintiffs aver that the derailment, bridge collapse, and leak of vinyl chloride was caused by the joint negligence and fault of the Defendants as set forth above.

63. In addition, and in the alternative, the derailment, bridge collapse, and leak of vinyl chloride was caused by defective equipment, which was in the care, custody and control of Defendants. Defendants knew or should have known of these defects and are, therefore, liable for them.

64. The damages to Plaintiffs and class members were also caused by or aggravated by the fact that Defendants failed to take necessary actions to mitigate the danger associated with their operations.

65. Plaintiffs and class members are entitled to a judgment finding Defendants liable to Plaintiffs and class members for damages suffered as a result of Defendants' negligence and awarding Plaintiffs and class members adequate compensation therefore in amounts determined by the triers of fact.

WHEREFORE, as a direct and proximate result of the negligence caused by Defendants, Plaintiffs for themselves and the Class seek compensatory damages for the economics loss incurred, fees and costs and other remedies permitted by the court.

COUNT II
RES IPSA LOQUITUR

(On Behalf of All Plaintiffs Against All Defendants)

66. Plaintiffs, on behalf of themselves and class members, repeat, reiterate, and re-allege each and every allegation set forth above with the same force and effect as if copied herein.

67. In addition to the negligent actions described above, and in the alternative thereto, the injuries and damages suffered by Plaintiffs and class members were caused by the acts and/or omissions of the Defendants that are beyond proof by the Plaintiffs and class members, but which were within the knowledge and control of the Defendants, there being no other possible conclusion than that the derailment, bridge collapse, and vinyl chloride leak resulted from the negligence of Defendants. Furthermore, derailment, bridge collapse, and vinyl chloride leak would not have occurred had the Defendants exercised the high degree of care imposed on them and Plaintiffs, therefore, plead the doctrine of *res ipsa loquitur*.

68. Plaintiffs and class members are entitled to a judgment finding Defendants liable to Plaintiffs and class members for damages suffered as a result of Defendants' negligence and awarding Plaintiffs and class members adequate compensation therefore in amounts determined by the trier of fact.

WHEREFORE, as a direct and proximate result of the train derailment caused by Defendants, Plaintiffs for themselves and the Class seek compensatory damages for the economics loss incurred, fees and costs and other remedies permitted by the court.

COUNT III
TRESPASS

(On Behalf of All Plaintiffs Against All Defendants)

69. Plaintiffs, on behalf of themselves and class members, repeat, reiterate, and re-allege each and every allegation set forth above with the same force and effect as if copied herein.

70. Defendants' acts and omissions have resulted and continue to result in the direct and physical invasion of Plaintiffs' and class members' properties, by toxic and/or harmful substances that have contaminated their properties, buildings, and the surrounding surface and subsurface areas.

71. As a direct and proximate result of the acts and omissions of Defendants, Plaintiffs and class members have suffered losses in the form of, but not limited to, loss of the beneficial use, enjoyment, and exclusive possession of their property, for which they are entitled to be compensated.

72. Defendants' liability does not depend upon a finding of toxic and ultrahazardous chemicals at exposure levels above any certain regulatory standard.

73. The decision to evacuate residences, and/or not to go to places of employment, and/or not to open businesses, was reasonable, and was expected by defendants, and was justified by the fact the ultrahazardous, toxic and hazardous chemicals were released into the air, and was further justified by the orders promulgated by authorities

WHEREFORE, as a direct and proximate result of the trespass of Defendants, Plaintiffs for themselves and the Class seek compensatory damages for the economics loss incurred, fees and costs, (punitive damages, or treble damages), and other remedies permitted by the court.

COUNT IV
NUISANCE

(On Behalf of All Plaintiffs Against All Defendants)

74. Plaintiffs, on behalf of themselves and class members, repeat, reiterate, and re-allege each and every allegation set forth above with the same force and effect as if copied herein.

75. Defendants' acts and omissions described above have caused and continue to cause a material, substantial, and unreasonable interference with Plaintiffs' and class members' use and enjoyment of their properties.

76. Defendants' material, substantial, and unreasonable interference with the use and enjoyment of Plaintiffs' and class members' properties constitutes a continuing private nuisance.

77. Defendants' creation and continuing creation of private nuisance proximately caused the economic loss and obstruction of the rights of Plaintiffs and the class. The annoyance, inconvenience, and material interruption in daily routine and work/business practice which was produced by Defendants caused this loss and obstruction of rights.

78. The acts and omissions of defendants disturbed Plaintiffs and the class in possession of their own property, residence, workplace and/or place of business, such that it was

uncomfortable, annoying and was considered by the authorities to be a potential health risk, and Plaintiffs and class were unable to use these places, and the evacuation and the closing of businesses and related conduct by the class was a direct result.

79. Defendants' liability does not depend upon a finding of toxic and ultrahazardous chemicals at exposure levels above any certain regulatory standard.

80. The decision to evacuate residences, and/or not to go to places of employment, and/or not to open businesses, was reasonable, and was expected by Defendants, and was justified by the fact the ultrahazardous, toxic and hazardous chemicals were released into the air, and was further justified by the orders promulgated by authorities.

WHEREFORE, as a direct and proximate result of the nuisance caused by Defendants, Plaintiffs for themselves and the Class seek compensatory damages for the economics loss incurred, fees and costs and other remedies permitted by the court.

COUNT V
PUNITIVE DAMAGES

(On Behalf of All Plaintiffs Against All Defendants)

81. Plaintiffs, on behalf of themselves and class members, repeat, reiterate, and re-allege each and every allegation set forth above with the same force and effect as if copied herein.

82. On November 30, 2012, the Defendants, individually and/or through their respective agents, servants, workmen and/or employees, instructed the train crew to proceed across the Paulsboro bridge even though there was a red signal indicating that the bridge was not properly aligned and that the tracks were not properly locked to the tracks on either side of the bridge.

83. On November 30, 2012, the Defendants, individually and/or through their respective agents, servants, workmen and/or employees, instructed the train crew to proceed across

the Paulsboro bridge even though approximately eight hours before this accident another train crew reported that the bridge had malfunctioned.

84. On November 30, 2012, the Defendants, individually and/or through their respective agents, servants, workmen and/or employees, instructed the train crew to proceed across the Paulsboro bridge even though the year proceeding this accident the defendants received 23 trouble tickets concerning the failure of this bridge to operate properly.

85. On November 30, 2012, the Defendants, individually and/or through their respective agents, servants, workmen and/or employees, instructed the train crew to proceed across the Paulsboro bridge even though during the month proceeding this accident, the Defendants received 9 trouble tickets concerning the failure of this bridge to operate properly.

86. On November 30, 2012, the Defendants, individually and/or through their respective agents, servants, workmen and/or employees, instructed the train crew to proceed across the Paulsboro bridge even though the Defendants failed to properly perform the mandated quarterly bridge inspection in September, 2012.

87. On November 30, 2012, the Defendants, individually and/or through their respective agents, servants, workmen and/or employees, instructed the train crew to proceed across the Paulsboro bridge even though the Defendants did not have a qualified bridge mechanic inspect the bridge before permitting the train's crew to travel over the bridge despite the red signal.

88. On November 30, 2012, the Defendants, individually and/or through their respective agents, servants, workmen and/or employees, instructed the train crew to proceed across the Paulsboro bridge even though there was a red signal indicating that the bridge was not properly aligned and/or locked and the defendants knew that the train was carrying ultrahazardous, hazardous, dangerous, toxic and, poisonous cargo.

89. At all times material hereto, the Defendants, jointly and severally, individually and/or through their respective agents, servants, workmen and/or employees, acted in an outrageous, willful and reckless manner, and were willing to risk lives and health of hundreds if not thousands of persons, plus the large-scale loss of income, plus the large scale economic loss caused by evacuation, all so that defendants could continue their profit flow.

At all times material hereto, the defendants, jointly and severally, individually and/or through their respective agents, servants, workmen and/or employees, acted with a wanton disregard and reckless indifference to the rights and welfare, safety, health and life of the plaintiffs and class members herein.

90. Defendants' liability does not depend upon a finding of toxic and ultrahazardous chemicals at exposure levels above any certain regulatory standard.

91. The decision to evacuate residences, and/or not to go to places of employment, and/or not to open businesses, was reasonable, and was expected by defendants, and was justified by the fact the ultrahazardous, toxic and hazardous chemicals were released into the air, and was further justified by the orders promulgated by authorities.

92. Defendants' actions and/or omissions, as detailed above, give rise not only to compensatory damages, but also to punitive damages in an amount to be determined at trial.

WHEREFORE, as a result of the Defendants outrageous, willful, reckless actions and their wanton disregard for the health of plaintiff and the Class, the plaintiffs and the Class members are entitled to punitive damages against the defendants, jointly and severally.

COUNT VI
STRICT LIABILITY-ULTRAHAZARDOUS ACTIVITY

(On Behalf of All Plaintiffs Against All Defendants)

93. Plaintiffs, on behalf of themselves and class members, repeat, reiterate, and re-allege each and every allegation set forth above with the same force and effect as if copied herein.

94. The conduct of defendants included the transport of ultrahazardous chemicals, including but not limited to vinyl chloride.

95. The conduct of defendants created a high risk of harm to persons, property and businesses in the area.

96. The likelihood that harm would result if defendants' rail cars, carrying vinyl chloride and other ultrahazardous, chemicals, derailed, and/or if defendants' bridge collapsed with such a cargo on it, was great.

97. The risk described above is not commonplace nor usual.

98. It was inappropriate for defendants to act, and to fail to act, as set forth above, in relation to their train and/or their bridge, while their train carried vinyl chloride and other ultrahazardous chemicals.

99. The value to the community of transporting vinyl chloride and other ultrahazardous chemicals, while the aforesaid bridge and rails and mode of operation were as set forth above, were outweighed by their dangerous attributes.

100. Defendants knew or should have known of the condition of the bridge and rails and mode of operation described above, and of the content of their rail cars, and of the risk of harm in proceeding as they did.

101. The release into the air of toxic chemicals, including but not limited to vinyl chloride, upon the derailment of defendants' rail cars, and the subsequent economic loss set forth above, was the kind of harm that would be anticipated.

102. The ultrahazardous activity described above was the cause of and/or was a substantial contributing factor in causing, the economic loss described above.

103. Defendants, in carrying on the abnormally dangerous and ultrahazardous activity described above, are strictly liable for the economic loss described above.

104. Defendants, in carrying on the abnormally dangerous and ultrahazardous activity described above, are liable whether or not defendants exercised the utmost care to prevent the harm.

WHEREFORE, as a direct and proximate result of the ultrahazardous activity of Defendants, Plaintiffs for themselves and the Class seek compensatory damages for the economic loss incurred, fees and costs and other remedies permitted by the court.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs request that this Court enter a judgment against Defendants and in favor of Plaintiffs and the classes and award the following relief:

A. Certifying this action as a class action pursuant to Rule 23 of the Federal Rules of Civil Procedure, declaring plaintiffs Donald Wilson and Tracy Lee as Class Representatives;

B. Declaring, adjudging and decreeing the conduct alleged herein as unlawful;
Awarding Plaintiffs and the class punitive damages;

C. Granting Plaintiffs and the class costs of suit, including reasonable attorneys' fees and expenses;

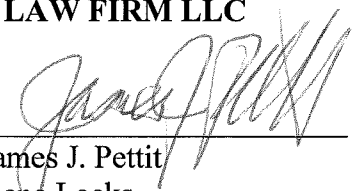
D. Awarding any and all damages available by statute or common law available under any of the Counts of this Amended Class Action Complaint;

E. Granting Plaintiffs and the class such other, further and different relief as the nature of the case may require or as may be determined to be just, equitable and proper by this Court.

Dated: May 24, 2013

Respectfully submitted,

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